

STATE OF NEW YORK

5989--A

Cal. No. 651

2025-2026 Regular Sessions

IN SENATE

March 4, 2025

Introduced by Sen. BYNOE -- read twice and ordered printed, and when printed to be committed to the Committee on Libraries -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, in relation to library cards issued to minors

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 816 of the education law, as added by chapter 247
2 of the laws of 2013, is amended to read as follows:

3 § 816. Local library and school partnerships. 1. Legislative intent.
4 In order to promote and encourage children to read and learn outside the
5 classroom, this law seeks to encourage local libraries and schools to
6 work together to promote the availability of library services and
7 resources.

8 2. Definitions. For the purposes of this section, the following terms
9 shall be defined as follows:

10 a. "School district" shall mean any public school district in the
11 state of New York that contains one or more schools with any combination
12 of grades from and including kindergarten through grade twelve.

13 b. "Public library" shall mean any public or association library as
14 defined in section two hundred fifty-three of this title.

15 3. Upon the registration of a minor pursuant to section thirty-two
16 hundred five of this chapter to attend full time kindergarten offered by
17 a school district, parents or persons in parental relation to such minor
18 shall have the option to check a space on such registration form author-
19 izing such minor to receive a local library card from the respective
20 local library.

21 4. Upon the request of a public library that is located within the
22 boundaries of a school district, the district shall disseminate informa-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 tional materials provided by the library regarding the public library
2 and applications for public library cards to students enrolled in the
3 school district. Such materials shall be distributed to any or all of
4 the following, as requested by the public library:

5 a. annually to every student of such school district upon [~~his or her~~]
6 their entry into [~~kindergarten~~] grade one, grade six and grade nine,
7 except that a library and school may agree to alternate or additional
8 grades;

9 b. to every student upon [~~his or her~~] their enrollment as a new
10 student; and

11 c. available at all times in the school library in each school within
12 the school district for students and parents or persons in parental
13 relation to a student who wish to obtain such materials.

14 [~~4-~~] 5. The director of each participating public library shall
15 consult annually with the school district in order to coordinate the
16 provision of materials containing information regarding the library,
17 instructions on how students may obtain a library card and an applica-
18 tion for a library card.

19 [~~5-~~] 6. Each public library that is located in the school district
20 shall provide sufficient copies of such materials to the school district
21 for distribution as described in subdivision [~~three~~] four of this
22 section so that each school may satisfy the requirements of this
23 section.

24 [~~6-~~] 7. In the event there is no public library located within the
25 boundaries of a school district, such school district shall not be
26 required to comply with this section.

27 [~~7-~~] 8. The commissioner shall have the authority to establish rules
28 and regulations to implement the provisions of this section.

29 [~~8-~~] 9. Nothing in this act shall require a school district to expend
30 additional funds in order to comply with the provisions of this section.

31 [~~9-~~] 10. This section shall not apply to a school district or a
32 library in a city of one million or more where such district or library
33 are subject to a local law which was adopted prior to the enactment of
34 this section and which provides for the distribution of library materi-
35 als in public schools.

36 § 2. This act shall take effect on the one hundred twentieth day after
37 it shall have become a law.